

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 23, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal, Dr. Mark Rinne (arriving at 6:07 p.m.), Dicky Shanor and Jeff White. Also present: Kylie Soden, Deputy City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, and pursuant to support received by Mr. Case and Mr. Roybal, Agenda Item #20(a) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 9, 2017. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict (business interest in voucher payable to Cowboy Dodge, Inc.) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Case. Upon inquiry, Ron Downey, City Treasurer, provided information available on vouchers payable to the following: Aircycle Corp. (machine for destroying and removing mercury from florescent light bulbs); All Traffic Data Services, Inc. (traffic counts survey for MPO); AVI Engineering (20th & Duff Crosswalk professional services); E/S3 Consultants, Inc. (energy efficiency study at Ice & Events Center), and Green House Data (discovery and recommendations for business continuity for disaster recovery). Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Chambers.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, a portion of Section 9, all of the W½ Section 14, all of Section 15, a portion of Section 16, and all of Section 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located to the southeast of the intersection of E. College Drive and Avenue C). Reporting for Public Services Committee, Mr. Case moved to approve on second reading with staff conditions #1 through 5, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from MR Medium-Density Residential to CB Community Business for Lot 4, Block 2, Moore-Haven Heights Addition, 3rd Filing,

Cheyenne, Wyoming (located south of 8th Avenue west of Central Avenue). Mr. Case moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from HR High-Density Residential to CB Community Business for Lot 3, Lot 4, and the W 22' of Lot 2, Block 745, Stanfield Addition; and Lots 1, 2, & 5, Block 1, Stanfield Addition, 3rd Filing, Cheyenne, Wyoming (located west of the intersection of Deming Drive and Walterscheid Boulevard). Mr. Case moved to approve on second reading, seconded by Dr. Rinne. Upon inquiry, Seth Lloyd, Planning and Development Department, provided information on a proposed Greenway path in the area, noting it will not affect the parcel. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Vacating the eastern one-half of the 16-foot wide alley located west of House Avenue, south of Evans Avenue, adjacent to Lots 1, 2, 3, 12, 13 and 14 of Block 2, Pershing Heights Addition, Second Filing, City of Cheyenne, Laramie County, Wyoming. Mr. Case moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from Swan Ranch Rail Park Planned Unit Development to Light Industrial for a portion of Lots 11, 12, 13, 14 and 15, Block 2 of the Swan Ranch Rail Park Eleventh Filing Subdivision, Cheyenne, Wyoming (located north of Tundra Drive, south of W. Wallick Road and west of Clear Creek Parkway). Mr. Case moved to approve on second reading with staff condition #1, seconded by Mr. White. Upon inquiry, Eric Hammer, Planning and Development Department, confirmed that condition #1 rectifies the possibility of the land having two different zoning designations. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 1st READING – Amending various sections of Chapter 8.40, Food and Food Service Establishments, Title 8, Health and Safety, of the code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsors – Mr. Johnson and Mr. White)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for the Swan Ranch Rail Park, Eleventh Filing Subdivision, a replat of Lots 1 through 10, Block 1 and Lots 1 through 17, Block 2 of the Swan Ranch Rail Park Eighth Filing and being situated in portions of Sections 14, 15, 22, 23 and 27, Township 13 north, Range 67 west of the 6th Principal Meridian, City of Cheyenne, Laramie County, Wyoming (located north of Tundra Drive, south of W. Wallick Road and west of Clear Creek Parkway). Mr. Case moved to adopt with Planning Commission conditions #1 and 2, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. (#5886)

[CA] RESOLUTION – Granting an exception to the ‘201 Agreement’ for development of a new office building to be served by an on-site septic system located generally within Township 14,

Range 66, Section 25, Laramie County, Wyoming (south of Dell Range Blvd. at its intersection with US 30). Motion (per Consent Agenda) carried. (#5887)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2017 budget of the City of Cheyenne according to the provisions of W.S. §§16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Certifying compliance with W.S. §15-1-402 for the City-initiated annexation of a portion of the S½ of Section 35, and a portion of the SW¼ of Section 36, T14N, R67W, Laramie County, Wyoming (located between Old Happy Jack Road and Happy Jack Road, west of I-80) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

Preliminary Plat for Whitney Ranch, 1st Filing, a replat of all of Tracts 31 and 32 and that portion of James Drive intervening; and a portion of Tract 39, Hill Heights Addition, situate in Section 23, Township 14 North, Range 66 West, 6th P.M., County of Laramie, State of Wyoming (located east of and adjacent to Van Buren Avenue, north of Dell Range Boulevard). Mr. Case moved to acknowledge the Planning Commission's recommendation to approve with staff condition #1, seconded by Dr. Rinne. Upon inquiry, Eric Hammer, Planning and Development Department, explained that staff condition #1 is related to the James Place right-of-way, noting the developer believes it should be 60 ft. wide at that location. He advised a traffic study will determine the correct width. Mr. Hammer also provided information on the proposed 2nd Filing for Whitney Ranch to the north, which will be unusually shaped due to topography. Brad Emmons, AVI Engineering, agent for the developer, explained the master plan is for about 600 acres and all areas are being reviewed concurrently, and stated arterial and collector roads are currently the only ones that have been laid out. Motion carried. Voting "yes" – all members of the governing body.

Conditional Approval of a Concept Preliminary Plat for the Sweetgrass Subdivision, consisting of unplatted lands being all of the SE ¼ SE ¼ Section 10, S ½ S ½ W ½ Section 11, S ½ Section 14, all of Section 15, a portion of Section 16, and all of Section 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located south of College Drive and east of Avenue C). Mr. Case moved to acknowledge the Planning Commission's recommendation of conditional approval with conditions #1 and 2, seconded by Dr. Rinne. Mr. Case moved to amend by revised Concept Preliminary Plat dated October 20, 2017 which satisfies condition #2, seconded by Dr. Rinne. Motion to amend carried. Voting "yes" – all members of the governing body. Main motion as amended carried. Voting "yes" - all members of the governing body.

[CA] Professional Services Agreement for drafting and negotiation of Charter Communications Cable Franchise renewal and CenturyLink Cable Television Franchise agreements with River Oaks Communications Corporation. Motion (per Consent Agenda) carried (amount not to exceed \$51,635.00). (#6743)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the United States Secret Service for Colorado and Wyoming Financial Crimes Task Force – referred to Finance Committee.

[CA] Grant Award Agreement between the City of Cheyenne, Cheyenne Police Department, and State of Wyoming, Office of Homeland Security, for the purchase of one trailer mounted mobile surveillance platform and allowable accessories – referred to Finance Committee.

[CA] Employment Agreement between the City of Cheyenne, through the Cheyenne Police Department, and Jessica Fritz for crime victim assistance services – referred to Finance Committee.

[CA] Employment Agreement between the City of Cheyenne, through the Cheyenne Police Department, and Leslie Burch for crime victim assistance services – referred to Finance Committee.

[CA] Employment Agreement between the City of Cheyenne, through the Cheyenne Police Department, and Brenda Johnson for crime victim assistance services – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and AVI to develop the Evers Blvd. Reconstruction design – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the Downtown Development Authority to establish the responsibilities of how and processes by which the Fiscal Year 2017-2018 funds are to be used in the Cheyenne central business district – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Collins Engineers, Inc., for Christensen Road constructability review services – referred to Finance Committee.

[CA] Amendment No. 2 to Contract No. 6162 between the City of Cheyenne, through the Information Technology Division, and CenturyLink Sales Solution, Inc. for modification to the City's Metro Ethernet Network servicing outlying offices – referred to Finance Committee.

Consideration of Bid #S-2-18 for a contract between the City of Cheyenne, Public Works Department, and Reiman Corp., Cheyenne, WY, for the Pershing and Duff Crosswalk Project (2015-2018 1% Sales Tax). Reporting for Finance Committee, Mr. Luna moved to accept the bid from Reiman Corp., Cheyenne, WY, in an amount not to exceed \$76,300.50, seconded by Mr. White. Discussion followed and included: project importance; Mayor's Council for People with Disabilities' involvement with the project; traffic increases overall throughout the City and construction time frame for similar projects. Motion carried. Voting "yes" – all members of the governing body. (#6744)

[CA] Consideration of Bid #E-7-18 for furnishing ice control product for the Public Works Department (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-8-18 for furnishing one in-stock fire apparatus for the Cheyenne Fire and Rescue Department – referred to Finance Committee.

Satellite Manufacturing Permit application filed with the City Clerk's office for Chronicles Distilling, LLC, d/b/a Chronicles Distilling, 1506 Thomes Avenue, Cheyenne, Wyoming. Mr. Luna moved to approve contingent upon City inspections and submittal of proof of the Wyoming Liquor Division's manufacturing license, seconded by Mr. Johnson. Upon inquiry, Aaron Leshar, co-applicant, explained the business venture is fully funded through himself and his brother, and that distribution of their product will mainly be done through the Wyoming Liquor Division. Mr. Leshar stated that they are working with City and state entities to become fully compliant with requirements for the establishment, and welcomed Council members to contact them at any time with any questions. Motion carried. Voting "yes" – all members of the governing body.

Announcement was made of the appointments of Alexis Arp, Maggie Black, McCoy Bush, Ashen Doty, Raegan Downham, Dylan Fertig, Julia Horst, Keiran Loughran, Emily Lucero, Nickolas Metheny, Kaylee Sanchez, Kenitra Shanks, Dominick Singleton and Garrett Vickery to the 2017-18 Mayor's Youth Council (to be confirmed November 13, 2017).

Under other business:

Rev. Rick Veit and Ed Boenish, representing Compassionate Cheyenne, explained the vision and mission of the program and how it began, stating that the general goal is to nurture the growth of compassion in the community. Rev. Veit and Mr. Boenish advised there is an international Compassion Charter which will involve a future resolution to have Cheyenne become a compassionate City. It was noted there will be a public community forum on compassion at the library. Upon inquiry, Mr. Boenish stated there is no correlation between being a sanctuary City and a compassionate City. Discussion followed and included local and national goals and sanctuary Cities/states. Upon inquiry as to whether the upcoming resolution related to Compassionate Cheyenne will be impacted by state mandates on sanctuary rules, Sylvia Hackl, City Attorney, expressed her belief that supporting the resolution will not countermand any rules or anything otherwise set forth by the state.

Mr. Johnson commented on the dollar amount of a voucher payable to Affordable Lawn Care & Maintenance LLC that was presented for payment at the Council meeting on October 9, 2017 for nuisance abatement services for 7 properties.

Mr. Roybal spoke in reference to a project he is interested in involving repairing the clocks on the Spiker parking garage. He stated he would like to move forward with receiving a price on the cost for the project with Mayor Orr advising her office will assist in obtaining quotes.

Mr. Case advised he has received several concerns regarding an intersection at Cheshire Drive and Foxcroft Drive, and he would like research conducted for a solution for traffic issues in the area.

Mr. Case moved, pursuant to Wyo. Stat. §16-4-405 (a)(ii) and (iii), to meet in executive session for the purpose of receiving a legal briefing from the City Attorney on a matter concerning litigation to which the governing body may be a party or proposed litigation to which the governing body may be a party, seconded by Mr. Cook. Mayor Orr advised the motion was not debatable. Motion carried. Voting "yes" -- all members of the governing body. Mayor Orr stated the motion to move into executive session for the purpose stated by Councilman Case carried; the executive

session would be held in the City Council Administrative Office and would not be open to the public. In addition to members of the governing body, Mayor Orr announced the City Attorney, Assistant City Attorney (Ms. McCoy) and Deputy City Clerk would attend the executive session, and following the executive session further action by the governing body would not be taken, therefore, the regular meeting of the governing body would be officially adjourned following closure of the executive session. The governing body vacated Council Chambers at 6:46 p.m. to meet in executive session.

The meeting was officially adjourned at 7:28 p.m. following closure of the executive session.

Submitted by,

Kylie Soden
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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